

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1491

By: Paxton of the Senate

and

Hilbert of the House

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9 An Act relating to Presidential Electors; amending 26
10 O.S. 2021, Section 10-108, which relates to
11 vacancies; updating statutory language; prescribing
12 oath for Electors filling vacancies; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 26 O.S. 2021, Section 10-108, is
16 amended to read as follows:

17 In the event any Presidential Elector fails to meet at the
18 Governor's office at the prescribed time or refuses or fails to vote
19 for the persons nominated for the offices of President and Vice
20 President by the political party ~~which~~ that nominated the
21 Presidential Elector, ~~it shall be the duty of~~ the Electors present
22 at the prescribed time and place ~~aforesaid to shall~~ shall appoint a person
23 to fill such vacancy. The person appointed to fill the vacancy
24 shall subscribe to an oath stating that the appointee will cast a

1 ballot for the persons nominated for the offices of President and
2 Vice President by the appointee's political party. The oath shall
3 be witnessed by the Governor or the Governor's designee and filed
4 with the Secretary of State.

5 SECTION 2. This act shall become effective November 1, 2026.

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7 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
8 04/14/2026 - DO PASS
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